

IN THE UNITED STATES BANKRUPTCY COURT
FOR THE DISTRICT OF NEBRASKA

IN THE MATTER OF:) Case No. BK_____
)
_____,) Chapter 13
)
Debtor(s).)

Limited Motion to Modify Chapter 13 Plan after Confirmation

The above-listed debtor(s) move(s) the court for an order modifying the plan under 11 U.S.C. § 1329 and Neb. R. Bankr. P. 3015-3(B) for the reasons stated below [select all that are applicable and complete each PART]:

Part A

- ___ 1. The plan shall be modified to cure all delinquent payments as of the date of this motion. [If no election to change future payments is made under Nos. 2 and 3 of Part A, then plan payments will resume by the end of the month in which this motion is filed.]
- ___ 2. The plan will be modified to abate future payments beginning [MONTH], 20__, with plan payments to resume [MONTH], 20__.
- ___ 3. The plan will be modified to reduce plan payments to \$_____ beginning [MONTH], 20__, with plan payments to resume [MONTH], 20__.
- ___ a. From each reduced plan payment, adequate protection payments will be made to the following creditors in the following amounts:

Creditor's Name	Amount of Payment
_____	\$_____
_____	\$_____
_____	\$_____

Part B

- ___ 1. The base amount of the plan will remain the same.
- ___ 2. Beginning with the next plan payment, all future payments will increase to \$_____ per month.
- ___ 3. The base amount of the plan will increase to \$_____.
- ___ 4. The debtor(s) will pay in full all allowed claims.

The undersigned attorney for the debtor(s) certifies he/she computed the remaining available months and base amount of the plan under Neb. R. Bankr. P. 3015-3(B), and the plan, as modified, will be completed within 60 months from date of confirmation.

Part C

The reason(s) for this plan modification are: _____
_____.

WHEREFORE, the debtor(s) move the court for an order approving this limited motion to modify chapter 13 plan after confirmation.

Dated: _____

[SIGNATURE BLOCK]

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Instructions and Comments

Calculate the remaining months available for plan payments within the maximum plan term of 60 months from the date of confirmation. This calculation is:

Month of confirmation plus 60 months = plan completion month.

Plan completion month minus month in which regular plan payments will resume
= remaining available months.

The total dollar amount to complete the plan is divided by the remaining available months to determine whether the monthly payment must be increased. The base amount of the plan is the total of all payments required to be made under the plan. When the payment is increased, the debtor may have to increase the base amount of the plan. On request, the trustee's office will supply the exact amount the debtor previously paid so the debtor can calculate the new base amount.